

Siya Ram v. State of U.P. & Others

Allahabad High Court · Division Bench · 24 April 2018 (order-sheet 2.9.2016 to 24.4.2018; writ disposed of by relegation to the Executive Engineer as a billing dispute under Clause 6.5) · Writ - C No. 41405 of 2016 · **Writ petition disposed of with a direction. The Division Bench held that whether the petitioner continued to utilize electricity or is liable to pay consumption charges for the period up to permanent disconnection is a question of fact to be determined by the Executive Engineer (respondent no. 4) as a billing dispute in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that the petitioner may, if still aggrieved, approach the Consumer Grievance Redressal Forum under Clause 7.10. The petitioner was directed to place a certified copy of the order before the Executive Engineer within ten days; the Executive Engineer to determine the dispute and pass an appropriate order within six weeks; and the impugned recovery proceedings under the citation dated 27.06.2016 to proceed only after that determination, provided any dues are found recoverable in accordance with law. The interim protection against recovery (order dated 2.9.2016) had continued throughout.**

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HEADNOTE

Siya Ram challenged a recovery notice-cum-citation dated 27 June 2016 seeking Rs.1,10,025/- as electricity dues under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, in respect of a connection standing in his father's name which, he asserted, had been disconnected in 1993 and permanently disconnected on 17 October 2005, contending that no amount was due and that he had not utilized any electricity whose charges could be realized from him. On the first date (2 September 2016) the Allahabad High Court took the prima facie view that a recovery certificate had been issued under Section 3 of the 1958 Act for a connection permanently disconnected on 17 October 2005, and stayed recovery. After the writ lay pending till 2018, the Division Bench disposed of it on 24 April 2018 without deciding the merits: whether the petitioner continued to utilize electricity or is liable to pay consumption charges up to the date of permanent disconnection was held to be a question of fact to be determined by the Executive Engineer as a billing dispute in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a further remedy before the Consumer Grievance Redressal Forum under Clause 7.10. The petitioner was relegated to the Executive Engineer (to be approached with a certified copy of the order within ten days), who was directed to decide the dispute within six weeks; the impugned recovery proceedings were to proceed only after that determination and only if dues were found recoverable in accordance with law. The writ was thus disposed of by relegation to the statutory forum, the disputed liability being a question of fact.

FACTUAL SUMMARY

The petitioner, Siya Ram, was served with a recovery notice-cum-citation dated 27 June 2016 seeking to recover Rs.1,10,025/- as electricity dues, the recovery certificate having been issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. The demand related to an electricity connection standing in the name of the petitioner's father. The petitioner's case was that the connection had already been disconnected in 1993 and permanently disconnected on 17 October 2005, that he had not utilized any electricity thereafter, and that no amount was due; from the writ petition it appeared that certain deposits had been made in 1999 and disconnection had taken place in 2005. He filed Writ - C No. 41405 of 2016 before the Allahabad High Court against the State of U.P. and four others (including the Executive Engineer, respondent no. 4). By interim order dated 2 September 2016 the Court, taking the prima facie view that a recovery certificate had been issued under Section 3 of the 1958 Act despite the permanent disconnection on 17 October 2005, directed that no recovery be made until the next date; that interim protection was extended from time to time. Counter affidavits were filed and the matter was repeatedly adjourned (including on counsel's illness slips) between 2016 and 2018 before several benches. On 24 April 2018 the Division Bench (Amreshwar Pratap Sahi and Shashi Kant, JJ.) disposed of the petition by relegating the petitioner to the Executive Engineer to have the dispute decided as a billing dispute under Clause 6.5 of the Supply Code, with a further remedy before the Consumer Grievance Redressal Forum under Clause 7.10, and directed that the impugned recovery proceedings proceed only after that determination.

REUSABLE CONSTRUCTIONS

1. Whether a consumer continued to utilize electricity, or is liable to pay consumption charges for the period up to the date of permanent disconnection, is a question of fact that can be determined by the Executive Engineer as a billing dispute in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ court will relegate the consumer to that forum rather than decide the disputed liability itself. **order of 24.4.2018**

2. Where the disputed liability is relegated to the Executive Engineer for determination as a billing dispute, the impugned recovery proceedings (here a recovery citation under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958) shall proceed only after that determination and only if dues are found recoverable in accordance with law; if still aggrieved, the consumer may approach the Consumer Grievance Redressal Forum under Clause 7.10. **order of 24.4.2018**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

RATIO

Disputed liability for consumption charges up to permanent disconnection is a question of fact to be determined by the Executive Engineer as a billing dispute; recovery abides that determination

QUESTION

Where a consumer disputes a recovery of electricity consumption charges (raised through a Section 3 recovery citation) on the ground that the connection was disconnected and no electricity was consumed, is the liability a question of fact, and before which forum is it to be determined?

HOLDING

Yes. Whether the petitioner continued to utilize electricity or is liable to pay consumption charges for the period up to the date of permanent disconnection is a question of fact which can be determined by the Executive Engineer as a billing dispute in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court accordingly relegated the petitioner to the Executive Engineer (respondent no. 4), to be approached with a certified copy of the order within ten days and to decide the dispute within six weeks, and directed that the impugned recovery proceedings under the citation dated 27.06.2016 proceed only after that determination and only if dues are found recoverable in accordance with law. **order of 24.4.2018**

EVIDENCE “whether the petitioner did continue to utilize the electricity or whether he is liable to pay any consumption charges for the period upto the date of permanent disconnection is a question of fact which can be determined by the Executive Engineer as a billing dispute in terms of Clause 6.5 of the Electricity Supply Code, 2005” **order of 24.4.2018**

EVIDENCE “The impugned recovery proceedings under the citation dated 27.06.2016 shall proceed only after the determination is made by the Executive Engineer provided any dues are found to be recoverable from the petitioner in accordance with law” **order of 24.4.2018**

FLAG Order-sheet with no printed page numbers; pins are order dates (pin_basis=date). The Court did not decide the quantum or validity of the demand; it characterised the dispute as a question of fact and relegated it to the Executive Engineer under Clause 6.5.

HOLDING-UNIT · UP-2005::7.10

OBITER

Further remedy before the Consumer Grievance Redressal Forum for a consumer still aggrieved after the Executive Engineer's billing-dispute determination

QUESTION

What further remedy is available to the consumer if he remains aggrieved after the billing dispute is determined by the Executive Engineer?

HOLDING

The Division Bench observed that, if the petitioner is still aggrieved, he can also approach the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 - an additional statutory avenue noted alongside the primary relegation to the Executive Engineer under Clause 6.5. **order of 24.4.2018**

EVIDENCE “If the petitioner is still aggrieved, he can also approach the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005” **order of 24.4.2018**

FLAG The 7.10 reference is a supplementary avenue noted by the Court, not the operative direction (which was to the Executive Engineer under Clause 6.5); marked obiter.

PRINCIPLE TAGS

billing-dispute-question-of-fact-executive-engineer-clause-6.5 A dispute over whether a consumer used electricity or owes consumption charges up to the date of permanent disconnection is a question of fact for the Executive Engineer to determine as a billing dispute under Clause 6.5; the writ court relegates the consumer rather than adjudicating the liability. **order of 24.4.2018**

If still aggrieved after the Executive Engineer's determination, the consumer may approach the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. [order of 24.4.2018](#)

recovery-citation-abides-billing-determination

A recovery citation under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 for disputed electricity dues is not permitted to proceed until the Executive Engineer determines the billing dispute, and then only if dues are found recoverable in accordance with law. [order of 24.4.2018](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE UNDER SECTION 3 OF THE U.P. GOVERNMENT ELECTRICAL UNDERTAKINGS (DUES RECOVERY) ACT, 1958 COULD VALIDLY BE ISSUED, AND WHETHER RS.1,10,025/- (OR ANY SUM) IS IN FACT RECOVERABLE FROM THE PETITIONER IN RESPECT OF A CONNECTION SAID TO HAVE BEEN PERMANENTLY DISCONNECTED ON 17 OCTOBER 2005.

Expressly left as a question of fact for the Executive Engineer to determine as a billing dispute under Clause 6.5; the writ court did not decide the quantum or the validity of the demand. The interim order of 2.9.2016 recorded only a prima facie view that the certificate had issued despite the permanent disconnection. [order of 24.4.2018](#)

RELATED CASES — SEE ALSO

SCJ-013 — Chandrika v. State of U.P. - a Clause 6.5 billing-dispute matter where the consumer is relegated to the Competent Authority; same relegation principle.

SCJ-1965 — Prakash Khare v. Collector, Kanpur Nagar - a dispute over the quantum of a demand notice relegated to the authority; cognate alternate-remedy disposal.

SCJ-096 — Om Prakash v. State of U.P. - a Clause 7.10 Consumer Grievance Redressal Forum matter; sibling on the CGRF remedy invoked here.